



POLICE DEPARTMENT

February 16, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202205666 regarding Sergeant Lalchan Singh, Tax No. 955499
(DADS No. 2023-29665)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202205666, pertaining to Sergeant Lalchan Singh. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Singh would be detrimental to the Police Department's disciplinary process.

The CCRB substantiated one allegation against Sergeant Singh. In considering the allegation substantiated by the CCRB, the Police Commissioner carefully reviewed the evidence presented by the CCRB.

Sergeant Singh directed the complainant be issued a disorderly conduct summons based on the complainant's behavior. It was Sergeant Singh's understanding that based on the totality of the circumstances, the complainant's actions rose to a disorderly conduct charge. The complainant continuously disregarded Sergeant Singh's commands during a vehicle stop and search, where the vehicle and the registration did not match. From the moment Sergeant Singh asked the complainant to exit the vehicle, they were noncompliant. When the complainant finally exits the vehicle, they were instructed to remain at the rear of the vehicle, with their back toward the trunk of the vehicle. However, despite Sergeant Singh issuing these commands, the complainant moved their hand in and out of their pocket, was moving around, and moving in the direction of Sergeant Singh, who was attempting to conduct a vehicle search. Sergeant Singh eventually placed the complainant in handcuffs and directed they be issued a disorderly conduct summons. Sergeant Singh described the complainant's behavior as "an unwillingness to be cooperative, evasive, hostile, and combative." The Police Commissioner has determined that based on the totality of circumstances Sergeant Singh did not commit any misconduct in regard to directing the issuance a disorderly conduct summons.

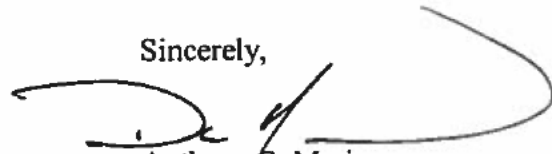
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CCRB argues that Sergeant Singh failed to meet the public harm element of disorderly conduct, where an individual's actions were of a public rather than an individual dimension. The complainant's own statements during their interview with CCRB contradict this. The complainant stated during their interview that there were a lot of people around them during the incident, a "bunch" of people in front of his building, as well as people watching them from the windows. The Police Commissioner has determined the elements of disorderly conduct were satisfied, given the totality of the circumstances.

In reaching this determination, the Police Commissioner noted that Sergeant Singh has no other substantiated CCRB allegations in his career, and has not received any formal discipline from the Department prior to this incident, during his eleven years with the Department. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends to retain jurisdiction over this matter and take no disciplinary action against Sergeant Singh.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

February 22, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 2022056666 (Incident Date: August 24, 2022) involving Sergeant
Lalchan Singh, Tax No. 955499 (DADS No. 2023-29665)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated February 16, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”). I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that the elements of disorderly conduct were satisfied, given the totality of the circumstances.” CCRB disagrees with this determination.

It is undisputed that § 87(2)(b) received a criminal court summons for disorderly conduct at the direction of Sgt. Singh. However, the CCRB contends that issuance of the summons was improper and motivated by retaliation. A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance, or alarm, or recklessly creating a risk thereof, he engages in fighting or in violent, tumultuous, or threatening behavior NYS Penal Law § 240.20 In *People v. Baker*, 20 N.Y.3d 354, the Court held that a finding of disorderly conduct requires a public harm element...that the defendant's disruptive statements and behavior were of a public rather than an individual dimension.

Sergeant’s Singh BWC shows that a crowd does not form, nor did § 87(2)(b) engage in any violent or tumultuous behavior, rather he simply refused to cooperate with the officers. Thus, the public harm element, a critical requirement for any finding of disorderly conduct per *Baker*, was not satisfied. Moreover, during his interview Sgt. Singh stated that, prior to exiting the vehicle, he did not recall § 87(2)(b) making any verbal threats or physical movements that posed safety concerns to officers and that his decision to issue § 87(2)(b) a criminal summons for

disorderly conduct was based on § 87(2)(b) “unwillingness to cooperate... evasive questioning, we had no idea who he was.” Sgt. Singh confirmed that other than the aforementioned reasons, there was nothing else regarding § 87(2)(b) conduct that constituted violent, threatening, or tumultuous behavior. He merely did not appreciate that § 87(2)(b) challenged his actions.

Sergeant Singh’s own statements, indicate that § 87(2)(b) behavior did not rise to the elements of disorderly conduct. Therefore, even if it was true that a crowd began to form, no other elements of disorderly conduct were met.

Based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Sergeant Singh in this matter. If, in the course of the disciplinary process, Sergeant Singh accepts responsibility for their actions the CCRB would consider that a factor towards resolving the disciplinary process with the mitigated penalty.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 23, 2024

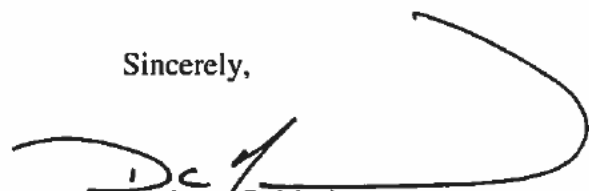
Re: CCRB Case No. 202205666 (Incident Date: August 24, 2022) regarding Sergeant
Lalchan Singh, Tax No. 955499 (DADS No. 2023-29665)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated February 22, 2024 concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Lalchan Singh, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Singh, for the reasons expressed in my February 16, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Sergeant Singh receive no disciplinary action in connection with this matter.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office